

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Civil Petition for Leave to Appeal No.2769/2025

[Against the judgment dated 14.05.2025 passed by the Federal Service Tribunal, Islamabad in Appeal No.488(R)CS/2022]

Auditor General of Pakistan
Constitutional Avenue, Islamabad
VERSUS

...Petitioner(s)

Faisal Ashraf and others

...Respondent(s)

For the Petitioner(s) : Mr. Rashideen Nawaz Kasuri,
Additional Attorney-General for Pakistan
Raja Tariq Mehmood, Director

For the Respondent(s) : Mr. Khan Rustam Khan, ASC

Date of Hearing : 23rd of February, 2026

J U D G E M E N T

Musarrat Hilali, J. – This Civil Petition for Leave to Appeal is directed against the judgment dated 14.05.2025 passed by the Federal Service Tribunal, Islamabad (“Tribunal”) in Appeal No.488(R)CS/2022, whereby the service appeal filed by the respondent Faisal Ashraf was disposed of and the petitioner department was directed to enhance the promotion quota for the post of Naib Qasid to Junior Auditor from 10% to 35% by modifying SRO No.953(1)/2011 dated 12.07.2011 (“SRO”).

2. The brief facts are that the respondent was appointed as Naib Qasid in April, 2014 and possessed the qualification of Bachelor of Commerce (B.Com.). He asserted that he fulfilled the eligibility criteria for promotion to the post of Junior Auditor, while certain employees earlier promoted under the prescribed 10% quota were non-graduates and continued to occupy the said posts in the office of D.G. Audit Railways. His request for enhancement of the promotional quota for employees below BS-11 against the post of Junior Auditor (BS-11) was declined by the competent authority vide letter dated 09.02.2022. Independently, his case for promotion was also considered and rejected through letter dated

03.02.2022 by the competent authority on the ground that the existing quota for promotion (10%) of Naib Qasid to Junior Auditor has already been exhausted.

3. In this backdrop, the respondent filed service appeal before the Tribunal, which through the impugned judgment was disposed of in the following manner:

“10. Consequent upon what has been discussed above, and in the interest of justice, we are constrained to direct the respondents to enhance the promotion quota for the post Naib Qasid to Junior Auditor @ 35% instead of 10% by promotion and 65% by initial appointment by modifying the SRO 953 (1) 2011 dated 12.07.2011 as promotion quota modified for the post of Junior Auditor to Senior Auditor in the Ministry of Finance vide SRO dated 10.01.2014 and 12.06.2017 and also in the CGA vide SRO dated 15.07.2014 and 29.05.2019 which are Sub Ordinance Offices of Auditor General of Pakistan in the light of Article 4, 8, and 25 of the Constitution of Islamic Republic of Pakistan, 1973. The process shall be completed within a period of three months. Compliance report in this regard be submitted in the office of the Registrar, FST on completion of process in the light of already decided matter by the FST in Appeal No.1112 to 1124(R) CS/2017 filed by Mr. Zameer Hussain and Others v. M/o Law etc. Grievance of other such like/similar employees would automatically be redressed on implementation of the titled appeal, therefore, the instant appeals stand disposed of accordingly.”

The petitioner department has assailed the impugned judgment on the ground that the Tribunal travelled beyond its statutory jurisdiction by interfering in matters of recruitment policy and by issuing directions which fall exclusively within the administrative domain of the competent authority.

4. We have heard the learned counsel and perused the record with their assistance. Before advertng to the merits, it is pertinent to note that the controversy in hand revolves around two fundamental aspects, namely, the extent of jurisdiction of the Tribunal under the law and the settled concept of promotion in public service being dependent upon sanctioned and available posts. The jurisdiction of the Tribunal under the Service Tribunals Act, 1973 is confined to examining grievances arising out of the terms and conditions of service; it does not extend to restructuring

cadres, altering recruitment or promotion policy. The formulation of recruitment policy, including determination of promotional ratios and mode of appointment, lies within the exclusive domain of the competent authority. In ***Federal Public Service Commission v. Shiraz Manzoor (2023 SCMR 2087)***, this Court has held that where no vested right is infringed, a Tribunal cannot question or replace a policy decision nor direct amendment of recruitment rules. In the present case also, by directing enhancement of the promotional quota and modification of the SRO, the Tribunal effectively assumed the role of a policy maker and substituted its own view for that of the competent authority.

5. Furthermore, promotion in public service is neither a vested right nor an entitlement. An employee may claim consideration for promotion strictly in accordance with the governing rules, subject to availability of posts and fulfilment of prescribed criteria, but cannot compel the employer department to alter recruitment policy or to modify promotional ratios. Matters relating to cadre structure, quota distribution and method of appointment are essentially administrative in nature and fall outside the adjudicatory jurisdiction of service tribunals unless shown to be mala fide or contrary to law or in infringement of the vested rights. The impugned judgment, however, proceeds on considerations of perceived inequity in promotional avenues, overlooking the settled principle that the competent authority alone is empowered to prescribe criteria and conditions relating to eligibility and promotion.

6. Another aspect which escaped consideration of the Tribunal is that respondent entered service in 2014, long after the promulgation of the SRO in 2011 and accepted appointment subject to the existing service structure. No vested right had accrued in his favour to seek amendment of rules or alteration of promotional quota. The consistent view of this Court affirms that courts and tribunals cannot direct amendment of recruitment rules or restructure promotional avenues merely to accommodate individual expectations. The Tribunal, therefore, exceeded its jurisdiction in issuing directions which effectively rewrote the

governing policy framework. It shall remain within the exclusive domain of the competent authority to revisit the promotional policy, if so advised, keeping in view institutional requirements, service structure and all ancillary considerations in accordance with law.

7. For the foregoing reasons, and as announced through short order dated 23.02.2026, this civil petition was converted into an appeal and allowed. The impugned judgment dated 14.05.2025 passed by the Tribunal is set aside and the service appeal filed by respondent stands dismissed.

8. Above are the reasons for our short order of even date, which is hereby reproduced as under:

“For the reasons to be recorded separately, this civil petition is converted into an appeal and is allowed. The impugned judgment dated 14.05.2025 of the Federal Service Tribunal is set-aside and service appeal filed by respondent No.1 is dismissed. However, we leave it at the discretion of the competent authority under sub-rule (3) of Rule 3 of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973 to consider whether SRO which was impugned before the Federal Service Tribunal needs any modification or not in the percentage/ratio of promotional quota for Naib Qasid to Junior Auditor.”

Islamabad, the
23rd of Feb 2026
Syed Farhan Ali/
Saifullah Khan, RO
Approved for reporting